



Bill Number: H.B. 2050

Angius Floor Amendment

Reference to: House engrossed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Restores the requirement that a radiologist assistant perform specified procedures and evaluations under direct supervision of a radiologist.
2. Requires the Department of Health Services to allow for general supervision of radiologist assistants in a county with a population of less than 500,000 persons or a health care institution that is licensed as a critical access hospital, if the health care facility establishes outlined policies and procedures.
3. Defines *general supervision* as supervision by a licensed Arizona radiologist who is readily accessible by telecommunication.

ANGIUS FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2050
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 30-672, Arizona Revised Statutes, is amended to
3 read:

4 30-672. Licensing and registration of sources of radiation;
5 exemptions; rules

6 A. The department by rule shall provide for general or specific
7 licensing of by-product MATERIALS, source MATERIALS, special nuclear
8 materials or devices or equipment using those materials. The department
9 shall require from the applicant satisfactory evidence that the applicant
10 is using methods and techniques that are demonstrated to be safe and that
11 the applicant is familiar with the rules adopted by the department under
12 section 30-654, subsection B, paragraph 5 relative to uniform radiation
13 standards, total occupational radiation exposure norms, labels, signs and
14 symbols, storage, waste disposal and shipment of radioactive
15 materials. The department may require that, before it issues a license,
16 the employees or other personnel of an applicant who may deal with sources
17 of radiation receive a course of instruction approved by the department
18 concerning department rules. The department shall require that the
19 applicant's proposed equipment and facilities be adequate to protect
20 health and safety and that the applicant's proposed administrative
21 controls over the use of the sources of radiation requested be adequate to
22 protect health and safety.

23 B. The department may require registration or licensing of other
24 sources of radiation if deemed necessary to protect public health or
25 safety.

26 C. The department may exempt certain sources of radiation or kinds
27 of uses or users from the licensing or registration requirements set forth
28 in this section if it finds that exempting such sources of radiation or

1 kinds of uses or users will not constitute a significant risk to the
2 health and safety of the public.

3 D. The director may suspend or revoke, in whole or in part, any
4 license issued under subsection A of this section if the licensee or an
5 officer, agent or employee of the licensee:

6 1. Violates this chapter or rules of the department adopted
7 pursuant to this chapter.

8 2. Has been, is or may continue to be in substantial violation of
9 the requirements for licensure of the SOURCE OF radiation ~~SOURCE~~ and as a
10 result the health or safety of the general public is in immediate danger.

11 E. If the licensee, or an officer, agent or employee of the
12 licensee, refuses to allow the department or its employees or agents to
13 inspect the licensee's premises, such an action shall be deemed reasonable
14 cause to believe that a substantial violation under subsection D,
15 paragraph 2 of this section exists.

16 F. A license may not be suspended or revoked under this chapter
17 without affording the licensee notice and an opportunity for a hearing as
18 provided in title 41, chapter 6, article 10.

19 G. The department shall not require persons who are licensed in
20 this state to practice as a dentist, physician assistant, REGISTERED NURSE
21 PRACTITIONER, chiropodist or veterinarian or licensed in this state to
22 practice medicine, surgery, osteopathic medicine, chiropractic or
23 naturopathic medicine to obtain any other license to use a diagnostic
24 x-ray machine, but these persons are governed by their own licensing acts.

25 H. Persons who are licensed by the federal communications
26 commission with respect to the activities for which they are licensed by
27 that commission are exempt from this chapter.

28 I. Rules adopted pursuant to this chapter may provide for
29 recognition of other state or federal licenses as the department deems
30 desirable, subject to such registration requirements as the department
31 prescribes.

32 J. Any licenses issued by the department shall state the nature,
33 use and extent of use of the source of radiation. If at any time after a
34 license is issued the licensee desires any change in the nature, use or
35 extent, the licensee shall seek an amendment or a new license under this
36 section.

37 K. The department shall prescribe by rule requirements for
38 financial security as a condition for licensure under this article. The
39 department shall deposit all amounts posted, paid or forfeited as
40 financial security in the radiation regulatory and perpetual care fund
41 established by section 30-694.

42 L. Persons applying for licensure shall provide notice to the city
43 or town where the applicant proposes to operate as part of the application
44 process.

45 M. Any facility that provides diagnostic MAMMOGRAPHY or screening
46 mammography examinations by or under the direction of a person who is
47 exempt from further licensure under subsection G of this section shall

1 obtain certification by the department. The department shall prescribe by
2 rule the requirements of certification in order to ensure the accuracy and
3 safety of diagnostic MAMMOGRAPHY and screening mammography.

4 Sec. 2. Section 32-2804, Arizona Revised Statutes, is amended to
5 read:

6 32-2804. School approval; standards; considerations

7 A. The department may approve a school of radiologic technology as
8 maintaining a satisfactory standard if ~~its~~ THE SCHOOL'S course of study:

9 1. Is ~~for a period of at least twenty-four months of full-time~~
10 ~~study or its equivalent and is~~ accredited by the ~~committee on allied~~
11 ~~health accreditation~~ COMMISSION ON ACCREDITATION OF ALLIED HEALTH
12 EDUCATION PROGRAMS OR THE JOINT REVIEW COMMITTEE ON EDUCATION IN
13 RADIOLOGIC TECHNOLOGY OR ACCREDITED AS RECOGNIZED BY THE UNITED STATES
14 DEPARTMENT OF EDUCATION, or meets or exceeds the standards of this
15 chapter.

16 2. Includes at least four hundred hours of classroom work,
17 including radiation protection, x-ray physics, radiographic techniques,
18 ~~processing techniques, nursing~~ RADIOGRAPHIC IMAGING AND PATIENT CARE
19 procedures, anatomy and physiology, radiographic positioning, ~~radiation~~
20 ~~therapy~~ AN INTRODUCTION TO OTHER IMAGING MODALITIES and professional
21 ethics.

22 3. Includes at least one thousand ~~eight~~ SIX hundred FIFTY hours
23 devoted to clinical experience.

24 4. Includes demonstrations, discussions, seminars and supervised
25 practice.

26 5. Includes at least eighty hours of regularly scheduled supervised
27 ~~film~~ IMAGE critiques.

28 B. An approved school of radiologic technology may be operated by a
29 medical or educational institution or other public or private agency or
30 institution and, for the purpose of providing the requisite clinical
31 experience, shall be affiliated with one or more hospitals that the
32 department determines are likely to provide this experience.

33 C. In approving a school of radiologic technology, the department
34 shall consider the standards adopted by appropriate professional
35 organizations, including the joint review committee on education in
36 radiologic technology, and may accept the certification of a school of
37 radiologic technology or the accreditation of a hospital to provide
38 requisite clinical experience if the department finds that certification
39 or accreditation was granted on the basis of standards that will afford
40 the same protection to the public as the standards provided by this
41 chapter.

42 Sec. 3. Section 32-2813, Arizona Revised Statutes, is amended to
43 read:

44 32-2813. Examination; contents; subsequent examinations

45 A. Examinations for certification shall include the subjects of
46 radiation protection, x-ray physics, radiographic techniques, ~~processing~~
47 ~~techniques, nursing~~ RADIOGRAPHIC IMAGING AND PATIENT CARE procedures,

1 anatomy terminology, radiological mathematics, professional ethics and
2 such other subjects as the department may deem appropriate, INCLUDING THE
3 CONTENT SPECIFICATIONS OUTLINED BY THE AMERICAN REGISTRY OF RADIOLOGIC
4 TECHNOLOGISTS.

5 B. The department shall prepare lists of examination questions or
6 problems and administer the examinations.

7 C. Examinations shall include written questions but may also
8 include practical and oral portions. Following each examination, the
9 papers and the practical and oral examinations shall be graded and the
10 standing of each applicant shall be recorded. The department shall either
11 pass or reject each applicant.

12 D. An applicant who fails to pass an examination may reapply for
13 examination in the manner prescribed by section 32-2812. The department
14 shall require a candidate who fails the examination three times to
15 successfully complete additional training prescribed by the department
16 before accepting the candidate for reexamination.

17 Sec. 4. Section 32-2815, Arizona Revised Statutes, is amended to
18 read:

19 32-2815. Rules; bone densitometry certification; nuclear
20 medicine certification; continuing education

21 A. The department shall adopt rules regarding the certification of
22 practical technologists in bone densitometry to allow the certificate
23 holder to apply ionizing radiation to a person's HIPS, SPINE AND
24 extremities through the use of a bone densitometry machine. The rules
25 shall prescribe:

26 1. The minimum education and training qualifications for
27 certification. The qualifications prescribed by the department shall
28 allow a person who does not meet the education and training requirements
29 of a radiologic technologist or a practical technologist in radiology to
30 obtain a certificate as a practical technologist in bone densitometry.

31 2. The application and renewal fees.

32 B. Subsection A of this section does not prohibit a radiologic
33 technologist or a practical technologist in radiology from operating a
34 bone densitometry machine.

35 C. A person who wishes to practice as a nuclear medicine
36 technologist must apply to the department for certification as prescribed
37 by rule. The department shall adopt rules to establish minimum
38 educational and training requirements for nuclear medicine technologists.

39 D. The department shall adopt rules to prescribe the following
40 minimum continuing education requirements for the renewal of the following
41 certificates:

42 1. Practical technologist in podiatry, two hours every two years.

43 2. Practical technologist in radiology, six hours every two years.

44 3. Practical technologist in bone densitometry, two hours every two
45 years.

46 4. Unlimited practical technologist in radiology, twenty-four hours
47 every two years.

1 5. Nuclear medicine technologist, twenty-four hours every two
2 years.

3 6. Radiologist assistant, fifty hours every two years.

4 7. Radiologic technologist, twenty-four hours every two years.

5 8. Radiation therapy technologist, twenty-four hours every two
6 years.

7 E. The department may require an applicant for renewal to document
8 compliance with the appropriate continuing education requirements of
9 subsection D of this section.

10 Sec. 5. Section 32-2819, Arizona Revised Statutes, is amended to
11 read:

12 32-2819. Radiologist assistants: certification: rules: scope
13 of practice

14 A. A person who wishes to practice as a radiologist assistant must
15 apply to the department for a certificate on a form and in the manner
16 prescribed by the department pursuant to the requirements of section
17 32-2812.

18 B. The department shall adopt rules to implement this section. The
19 rules shall include the following:

20 1. Continuing education requirements.

21 2. Any other requirements the department considers appropriate to
22 implement this section.

23 C. Pursuant to rules adopted by the department [AND EXCEPT AS
24 PROVIDED IN SECTION 32-2819.01], a radiologist assistant may do the
25 following under the [direct] supervision of a radiologist:

26 1. Perform fluoroscopic procedures.

27 2. Assess and evaluate the physiologic and psychological
28 responsiveness of patients WHO ARE undergoing radiologic procedures.

29 3. Evaluate image quality, make initial image observations and
30 communicate observations to the supervising radiologist.

31 4. Administer contrast media or other medications prescribed by the
32 supervising radiologist.

33 5. Perform any other procedures consistent with rules adopted by
34 the department.

35 D. In adopting rules pursuant to subsection C of this section, the
36 department shall consider guidelines established by ~~the~~ the American
37 society of radiologic technologists and the American registry of
38 radiologic technologists.

39 E. A radiologist assistant shall not interpret images, make
40 diagnoses or prescribe medications or therapies.

41 F. A radiologist who supervises a radiologist assistant may
42 authorize the RADIOLOGIST assistant to perform only those radiologic
43 procedures described in this section.

44 G. A person shall not do any of the following without a certificate
45 issued pursuant to this section:

46 1. Perform the radiologic procedures described in subsection C of
47 this section.

1 2. Claim to be a radiologist assistant, including using any sign,
2 advertisement, card, letterhead, circular or other writing, document or
3 design to induce others to believe the person is authorized to practice as
4 a radiologist assistant.

5 H. Subsection G of this section does not apply to either of the
6 following:

7 1. A person WHO IS engaging in the scope of practice for which the
8 person holds a valid license or certificate.

9 2. A person WHO IS performing a task as part of an advanced
10 academic program.

11 ~~[I. FOR THE PURPOSES OF THIS SECTION, "SUPERVISION" MEANS~~
12 ~~SUPERVISION BY A RADIOLOGIST WHO IS LICENSED IN THIS STATE AND WHO IS~~
13 ~~READILY ACCESSIBLE BY TELECOMMUNICATION.]~~

14 <<Sec. 6. Title 32, chapter 28, article 2, Arizona Revised
15 Statutes, is amended by adding section 32-2819.01, to read:

16 32-2819.01. Radiologist assistants; general supervision;
17 rural counties; critical access hospitals;
18 definition

19 [A. IN A COUNTY WITH A POPULATION OF LESS THAN FIVE HUNDRED
20 THOUSAND PERSONS OR A HEALTH CARE INSTITUTION THAT IS LICENSED AS A
21 CRITICAL ACCESS HOSPITAL. THE DEPARTMENT SHALL ALLOW FOR GENERAL
22 SUPERVISION OF RADIOLOGIST ASSISTANTS IF THE HEALTH CARE FACILITY ENSURES
23 ALL OF THE FOLLOWING:

24 1. THE HEALTH CARE FACILITY OR RADIOLOGIST:

25 (a) HAS ESTABLISHED A WRITTEN PROTOCOL FOR THE APPLICATION OF
26 RADIATION TO A PATIENT FOR EACH PROCEDURE THAT MAY BE CONDUCTED BY A
27 RADIOLOGIST ASSISTANT UNDER THE GENERAL SUPERVISION OF A RADIOLOGIST,
28 INCLUDING FOLLOW-UP INSTRUCTIONS FOR THE PATIENT.

29 (b) REVIEWS AND, AS NECESSARY, REVISES THE WRITTEN PROTOCOL AT
30 LEAST ANNUALLY.

31 (c) DOCUMENTS THE REVIEW REQUIRED BY SUBDIVISION (b) OF THIS
32 PARAGRAPH WITH A SIGNATURE AND DATE OF SIGNATURE.

33 2. EACH RADIOLOGIST ASSISTANT FOLLOWS THE APPLICABLE WRITTEN
34 PROTOCOL WHEN DELIVERING RADIATION TO A PATIENT.

35 3. AT LEAST EVERY SIX MONTHS, THE RADIOLOGIST:

36 (a) OBSERVES EACH RADIOLOGIST ASSISTANT WHILE THE RADIOLOGIST
37 ASSISTANT IS PERFORMING A PROCEDURE TO ENSURE THE RADIOLOGIST ASSISTANT'S
38 ADHERENCE TO THE APPLICABLE WRITTEN PROTOCOL.

39 (b) DOCUMENTS THE RADIOLOGIST'S OBSERVATION AND ASSESSMENT OF THE
40 RADIOLOGIST ASSISTANT.

41 4. A RADIOLOGIST IS ON-SITE AND AVAILABLE FOR CONSULTATION ABOUT
42 PATIENT CARE AT LEAST ONCE EVERY FIVE WORKING DAYS, AS VERIFIED IN
43 DOCUMENTATION MAINTAINED BY THE REGISTRANT.

44 5. THE HEALTH AND SAFETY OF PATIENTS ARE MAINTAINED.

45 B. A RADIOLOGIST THAT USES GENERAL SUPERVISION TO COMPLY WITH THE
46 REQUIREMENTS OF THIS SECTION SHALL DEVELOP, MAINTAIN AND IMPLEMENT
47 POLICIES AND PROCEDURES TO MONITOR BOTH:

1 1. THE PERFORMANCE OF EACH PROCEDURE BY A RADIOLOGIST ASSISTANT
2 UNDER GENERAL SUPERVISION.

3 2. THE QUALITY OF PATIENT CARE.

4 C. FOR THE PURPOSES OF THIS SECTION, "GENERAL SUPERVISION" MEANS
5 SUPERVISION BY A RADIOLOGIST WHO IS LICENSED IN THIS STATE AND WHO IS
6 READILY ACCESSIBLE BY TELECOMMUNICATION.

7 Sec. 7. Section 32-2841, Arizona Revised Statutes, is amended to
8 read:

9 32-2841. Mammographic technologists; computed tomography
10 technologists; certification; renewal

11 A. A person who wishes to perform diagnostic mammography or
12 screening mammography as defined in section 30-651 shall obtain a
13 mammographic technologist certificate from the department. A person who
14 wishes to perform computed tomography shall obtain a computed tomography
15 technologist certificate from the department. The department shall issue
16 a certificate to an applicant who:

17 1. Pays ~~a twenty dollar~~ THE application fee THAT IS PRESCRIBED IN
18 RULE BY THE DEPARTMENT.

19 2. Holds a current radiologic technology certificate issued by the
20 department.

21 3. For a mammographic TECHNOLOGIST certification, completes the
22 training and education requirements of subsection B of this section and
23 passes an examination as prescribed in subsection D of this section.

24 4. For a computed tomography technologist certification, provides
25 documentation of two years of experience in computed tomography and
26 completion of twelve hours of computed tomography specific education or
27 passes an examination as prescribed in subsection D of this section.

28 B. To satisfy the education requirements of subsection A of this
29 section, an applicant shall meet the initial training and education
30 requirements of the mammography quality standards act regulations for
31 quality standards of mammographic technologists; (21 Code of Federal
32 Regulations section 900.12).

33 C. The department shall issue a student mammography permit,
34 preceptorship or temporary certificate to a person who is in training and
35 WHO meets the requirement of subsection A, paragraph 2 of this section if
36 the applicant also provides the department with verification of employment
37 and the name of the radiologist who agrees to be responsible for the
38 applicant's supervision and training. A student mammography permit,
39 preceptorship or temporary certificate is valid for one year ~~from~~ AFTER
40 the date it is issued and may not be renewed. If the holder completes all
41 of the requirements of subsection A of this section within the permitted
42 period, the department shall issue a mammographic TECHNOLOGIST or computed
43 tomography technologist certificate. The mammographic TECHNOLOGIST or
44 computed tomography technologist certificate shall be renewed as
45 prescribed ~~under~~ BY subsection E of this section.

46 D. To satisfy the examination requirements of this section, an
47 applicant shall pass an examination in mammography or computed tomography

1 administered by the department or, in lieu of its own examination, the
2 department may accept a certificate issued on the basis of an examination
3 by a certificate-granting body recognized by the department.

4 E. Except as provided in section 32-4301, a certificate that is
5 issued under this section is valid for two years. The department shall
6 notify a certificate holder thirty days before the expiration date of the
7 certificate. An applicant for renewal of a mammographic technologist
8 certificate shall meet the continuing education requirements of the
9 mammography quality standards act regulations for quality standards of
10 mammographic technologists, ~~(21 Code of Federal Regulations section~~
11 ~~900.12)~~. If a radiologic technologist is certified by the American
12 registry of radiologic technologists, that person must satisfy the
13 continuing education requirements of this subsection by providing the
14 department with evidence of the RADIOLOGIC technologist's good standing
15 and current certification with that registry. The applicant shall also
16 pay a ~~twenty-dollar~~ renewal fee ~~to~~ AS PRESCRIBED IN RULE BY the
17 department.

18 F. A person or facility that employs a person WHO IS certified
19 under this section shall report any suspected violations of section
20 32-2821 to the department. The department shall investigate the
21 complaint. If in the course of its investigation the department
22 determines that a person regulated by another regulatory agency of this
23 state may have violated that agency's laws, the department shall report
24 the violation to the other agency for disciplinary action.

25 Sec. 8. Section 36-3601, Arizona Revised Statutes, is amended to
26 read:

27 36-3601. Definitions

28 ~~For the purposes of~~ IN this chapter, UNLESS THE CONTEXT OTHERWISE
29 REQUIRES:

30 1. "Health care decision maker" has the same meaning prescribed in
31 section 12-2801.

32 2. "Health care provider":

33 (a) Means a person WHO IS licensed pursuant to title 32, chapter 7,
34 8, 13, 14, 15, 15.1, 16, 17, 18, 19, 19.1, 25, ~~28~~, 29, 33, 34, 35, 39, 41
35 or 42, or chapter 4, article 6 of this title, chapter 6, article 7 of this
36 title or chapter 17 of this title.

37 (b) Includes:

38 (i) A health care institution THAT IS licensed pursuant to chapter
39 4 of this title.

40 (ii) A person who holds a training permit pursuant to title 32,
41 chapter 13 or 17.

42 3. "Health care provider regulatory board or agency" means a board
43 or agency that regulates one or more health care provider professions in
44 this state.

45 4. "Telehealth" means:

46 (a) The interactive use of audio, video or other electronic media,
47 including asynchronous store-and-forward technologies and remote patient

1 monitoring technologies, for the practice of health care, assessment,
2 diagnosis, consultation or treatment and the transfer of medical data.

3 (b) Includes the use of an audio-only telephone encounter between
4 the patient or client and health care provider if an audio-visual
5 telehealth encounter is not reasonably available due to the patient's
6 functional status, the patient's lack of technology or telecommunications
7 infrastructure limits, as determined by the health care provider.

8 (c) Does not include the use of a fax machine, instant messages,
9 ~~voice mail~~ VOICEMAIL or email.

10 Sec. 9. Legislative intent

11 The legislature intends that the change made to the list of health
12 professionals that do not require additional licensure to use diagnostic
13 x-ray in section 30-672, subsection G, Arizona Revised Statutes, as
14 amended by this act, prompt an advisory opinion from the state board of
15 nursing that details appropriate radiation safety training and operator
16 certification to perform imaging.

17 Enroll and engross to conform

18 Amend title to conform

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